

Independent Contractor Agreement

VERSION 1.0	EFFECTIVE	NEXT REVIEW	OWNER Principal / Key Management Personnel	APPROVED BY Governing body
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This agreement is issued with, and should be read alongside, the **Staff Induction Checklist** and **Worker Declarations**, which are provided as separate attachments. This is a template — obtain your own legal advice before use.

CONTRACTOR DETAILS

CONTRACTOR NAME

CONTRACTOR ABN

CONTRACTOR ADDRESS

SENT BY EMAIL TO

Cover letter

Dear [REDACTED],

Welcome to [REDACTED] (ABN [REDACTED]). Further to our discussions, we look forward to your assistance in relation to [REDACTED]'s provision of support and services to NDIS participants. Capitalised terms in this letter have the meaning given in the attached Independent Contractor Terms and Conditions (**Terms**). This letter and the attached Terms govern the performance of any Services by the Contractor to [REDACTED].

By signing below, or otherwise providing Services, you agree and are deemed to: be bound by the Terms; be bound by the Worker Declarations circulated with this cover letter; and confirm that you have provided or understood the information in the attached induction checklist (as applicable) and that [REDACTED] has identified and addressed the applicable induction criteria on that form.

Please let us know by return email if you do not agree to the above terms. If you do not make these declarations, [REDACTED] may not be permitted to continue your engagement.

1. The Services

- The Contractor agrees to provide the Services in accordance with these Terms, at any agreed location and time, and may be required to perform the Services for an Affiliate.
- The Contractor must provide the Services personally and must not subcontract or engage any person to perform them without [REDACTED]'s written consent (not to be unreasonably withheld).
- When providing services or supports via telehealth, the Contractor must use video conferencing software that provides interoperability, strong passwords, two-factor authentication and an access audit trail, secure end-to-end data transfer complying with Australian Privacy Principle 11, and regularly updated security measures.

2. Contractor's obligations

- The Contractor must keep documentation relating to the Services — evidence of work performed, documents provided or produced, and anything else [] reasonably requests — and make it available on request.
- The Contractor remains liable for any employment entitlements they are deemed entitled to (remuneration and superannuation, accrued leave, tax, insurance and premiums including workers compensation) and indemnifies [] accordingly.
- The Contractor may provide services to others (including similar services) provided the Services and the Contractor's compliance with these Terms are unaffected, there is no conflict of interest, and any potential conflict is disclosed to [] before the other engagement and fully discussed.

3. Relationship between the parties

The relationship is that of independent contractor and principal. The parties do not intend to create an employment relationship, partnership or other legal relationship. Unless permitted in writing, the Contractor must not make any contract on behalf of [], bind it to any obligation, or represent itself or any person as an employee or agent of [] other than in respect of providing the Services under these Terms.

4. Payment for the Services

- [] will pay the Services Fee set out in Item 4 of the Schedule.
- The Contractor invoices [] monthly in arrears. Provided a valid tax invoice accurately recording the Services is given, [] will pay within 14 days of receipt, to the address in Item 5 of the Schedule.

5. Expenses

Within 14 days of receiving a tax invoice, [] will reimburse approved out-of-pocket expenses supported by appropriate documentary evidence. Where the Contractor does not comply, it bears the cost of performing the Services and its obligations.

6. GST

Expressions defined in the GST Law have the same meaning here. The Contractor must obtain and retain an ABN, provide it on request, and notify [] of any change. If the Contractor is or becomes required to register for GST it must do so. Unless stated otherwise, amounts payable are exclusive of GST; where GST is payable on a supply, the recipient must pay the supplier an additional amount equal to the GST, at the same time as the consideration and against a tax invoice or adjustment note. Adjustment events and reimbursements are calculated net of input tax credits, plus any GST on the payment.

7. Confidentiality

All information obtained or used by the Contractor in providing the Services is information of [] (or an Affiliate). The Contractor must maintain the confidence of Confidential Information and must not use or disclose it, or allow its unauthorised use or disclosure, except as required to perform the Services, as required by a court or tribunal, or with []'s prior written consent on a case-by-case basis. The Contractor must promptly notify [] of any suspected or actual unauthorised use or disclosure, must not copy Confidential Information except for []'s benefit or with consent, and must return all Confidential Information on the Termination Date or on request. The Contractor must keep the terms of these Terms and details of the engagement confidential. These obligations continue after the Termination Date.

8. Indemnity

During the term and after the Termination Date, the Contractor indemnifies [] against any claims, loss, expense, damage or costs incurred directly or indirectly in the course of providing the Services in respect of: any amount of tax [] is or was deemed required to withhold from remuneration paid to the Contractor (including additional tax, levy, cost or penalty); and any employment entitlements the Contractor or any other person is deemed entitled to. The Contractor is also liable for, and indemnifies [] against, all Indemnified Taxes.

9. Insurance

The Contractor must take out and maintain public liability insurance with at least the cover noted in Item 6 of the Schedule, covering liability to third parties and their property, and must provide proof of currency on request.

10. Dispute resolution

The parties will negotiate in good faith to resolve any dispute. Failing that, either party may elect to appoint a mediator to attempt a non-binding resolution; if the parties cannot agree on a mediator within 14 days, one is appointed by the President of the relevant State or Territory Law Society. The parties bear the costs of mediation equally and their own legal costs. Nothing in this clause affects a party's right to terminate under these Terms or to resolve a dispute under applicable legislation.

11. Termination

- Either party may terminate on one month's written notice; [] may pay a pro-rata month of the Services Fee in lieu of part or all of the notice.
- Either party may terminate summarily, without notice, for a serious breach, or where the Contractor refuses or is unable to perform the Services as contemplated.
- On termination, the Contractor must return all [] property, equipment, documentation and Confidential Information; the value of anything not returned is a debt due immediately and may be deducted from any outstanding Services Fee.
- The Payment, Expenses, GST, Confidentiality, Indemnity and Insurance clauses survive termination.

12. General

These Terms may only be amended by written agreement of the parties. They are governed by the law of []. A failure to exercise a right is not a waiver unless in writing. These Terms are the whole agreement and replace all prior agreements, representations and understandings; if any term is invalid or unenforceable it is severed and the remainder continues. Defined terms include ABN, Affiliate, Claims, Commencement Date, Confidential Information, End Date, GST Law, Indemnified Taxes, Person, Services, Services Fee, Tax and Termination Date, each with the meaning given in the full Terms.

Schedule

Item 1 — Commencement Date	
Item 2 — End Date	
Item 3 — Services	

Item 4 — Services Fee	
Item 5 — Invoice address	
Item 6 — Minimum public liability cover	
Attachments	Staff Induction Checklist · Worker Declarations (provided separately)

EXECUTED AS AN AGREEMENT

Signed by the Contractor:

NAME

SIGNATURE

DATE

Signed for and on behalf of

NAME

SIGNATURE

DATE